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Book - 11130 Pg - 635-637
RASHELLE HOBBS
Recorder, Salt Lake County, UT
HIGHLAND TITLE AGENCY
BY: eCASH, DEPUTY - EF 3 P.

When recorded, send notice to:
P.G.L.C., LLC
2025 Mahre Drive
Park City, Utah 84098

Supplemental
Declaration and Notice of Vested Mining Use

Utah Code § 17-41-501 to -503, as amended

THIS SUPPLEMENTAL DECLARATION AND NOTICE OF VESTED MINING USE (**"Supplemental Declaration"**) is made pursuant to Paragraph L of that certain Declaration and Notice of Vested Mining Use dated November 19, 2019 and recorded in the official records of the Salt Lake County Recorder as Entry No. 13131633, Book 10864, Pages 630 to 639 (the **"2019 Declaration"**) by the undersigned as successors in interest to P.G.L.C., LLC, a mine operator under Utah law (the term "mine operator" includes any natural person, corporation, association, partnership, receiver, trustee, executor, administrator, guardian, fiduciary, agent, or other organization or representative, either public or private, including a successor, assign, subsidiary, related parent company, and predecessor in interest) (**"Declarants"**). This Declaration incorporates the 2019 Declaration by this reference and further adds to the 2019 Declaration the real property legally described on Exhibit A attached hereto and incorporated herein by this reference (the **"Parcel"**).

In 2016, P.G.L.C., LLC conveyed the Parcel to Declarants. As a successor in interest to P.G.L.C., Declarants are also considered a "mine operator" under Utah law. The purpose of this Declaration is to make clear that the Parcel as defined in this Supplemental Declaration is part of the Property as defined in the 2019 Declaration.

The vested mining use declared hereunder shall run with and bind the land within the Property as provided by Utah Code § 17-41-501(2), subject only to express abandonment by written declaration according to Utah Code § 17-41-503.

Dated this 14 day of October, 2020.

[SIGNATURES ON FOLLOWING PAGE]

COURTESY RECORDING
This document is being recorded solely as a courtesy and an accommodation to the parties named therein. HIGHLAND TITLE AGENCY hereby expressly disclaims any responsibility or liability for the accuracy of the content thereof.

DECLARANTS

Shaun Nacey

Shaun Nacey

An individual

Marla Nacey

Marla Nacey

An individual

STATE OF UTAH)
: ss.
COUNTY OF Salt Lake)

On the 14 day of 10, 2020, Shaun Nacey appeared before me who duly acknowledged and executed the above instrument in the capacity so stated.

JESSICA RASMUSSEN
NOTARY PUBLIC·STATE OF UTAH
COMMISSION# 700098
COMM. EXP. 04-20-2022

Notary Public

(seal)

STATE OF UTAH)
: ss.
COUNTY OF Salt Lake)

On the 14 day of 10, 2020, Marla Nacey appeared before me who duly acknowledged and executed the above instrument in the capacity so stated.

Notary Public

(seal)

JESSICA RASMUSSEN
NOTARY PUBLIC·STATE OF UTAH
COMMISSION# 700098
COMM. EXP. 04-20-2022

EXHIBIT A
to Declaration of Vested Mining Use

The "Parcel" referred to in the foregoing instrument is located in Salt Lake County, Utah, and is more particularly described as follows:

> The West ½ of the Southwest Quarter of Section 9, Township 1 South, Range 2 East, Salt Lake Meridian.
>
> Less and excepting a portion described as beginning South 67°29'33" West 1138.59 feet from the Southwest corner of Section 9, Township 1 South, Range 2 East, Salt Lake Meridian, and running thence West 135 feet; thence North 650 feet; thence North 42°36'44" East 920 feet; thence North 72°51'52" East 1320 feet; thence South 00°00'00" East 650 feet; thence South 77°29'36" West 770 feet; thence South 47°58'00" West 1343 feet to beginning.
>
> Less and excepting any portion lying within the right of way for the Denver & Rio Grande Railroad.
>
> Less and excepting any portion lying South of the North boundary of the Interstate 80 Right of Way.

The following is included for informational purposes only:
Salt Lake County Parcel No. 17-09-300-006